

the expression "prescribed" means prescribed for the time being by rules under this Act: other expressions have the same meaning as in the Trustee Act, 1893.

16. This Act shall come into operation on the first day of January one thousand nine hundred and eight. Commencement of Act

17.—(1) This Act may be cited as the Public Trustee Act, 1906. Short title and extent.

(2) This Act shall not extend to Ireland or Scotland.

CHAPTER 56.

An Act to amend the Law relating to Agricultural Holdings.
[21st December 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Subsection (1) of section one of the Agricultural Holdings Act, 1900, shall be repealed and for it substituted:— Amendment 63 & 64 Vic. c. 50.

Where a tenant has made on his holding any improvement comprised in the First Schedule to this Act, he shall, subject as in the Agricultural Holdings (England) Act, 1883 (in this Act referred to as "the principal Act"), and in this Act mentioned, be entitled at the determination of a tenancy on quitting his holding to obtain from the landlord, as compensation under the said Acts for the improvement, such sum as fairly represents the value of the improvement to an incoming tenant.

(2) All questions which, under the Agricultural Holdings (England) Acts, 1883 to 1900, or the Agricultural Holdings (Scotland) Acts, 1883 to 1900, or this Act, or under the contract of tenancy, are referred to arbitration shall, whether the matter in which the arbitration relates arose before or after the passing of this Act, be determined, notwithstanding any agreement to the contrary, by a single arbitrator, in accordance with the provisions set out in Part I. of the Second Schedule to the Agricultural Holdings Act, 1900, and any sum awarded by such arbitrator to be paid shall be recoverable in manner provided by the Agricultural Holdings (England) Acts, 1883 to 1900, or the Agricultural Holdings (Scotland) Acts, 1883 to 1900, for the recovery of compensation.

(3) The following rule shall be substituted for rule (10) in Part I. of the Second Schedule to the Agricultural Holdings Act, 1900:—

The arbitrator shall on the application of either party specify the amount awarded in respect of any particular improvement or any particular matter the subject of the award.

and the award shall fix a day not sooner than one month or later than two months after the delivery of the award for the payment of the money awarded as compensation costs, or otherwise, and shall be in such form as may be prescribed by the Board of Agriculture and Fisheries.

Compensation
for damage by
game.

2.—(1) Where the tenant has sustained damage to his crop from game, the right to kill and take which is vested neither in him nor in anyone claiming under him other than the landlord and which the tenant has not permission in writing to kill, he shall be entitled to compensation from his landlord for such damage if it exceeds in amount the sum of one shilling per acre of the area over which the damage extends, and an agreement to the contrary, or in limitation of such compensation shall be void.

(2) The amount of compensation payable under this section shall, in default of agreement made after the damage has been suffered, be determined by arbitration, but no compensation shall be recoverable under this section unless notice in writing is given to the landlord as soon as may be after the damage was first observed by the tenant and a reasonable opportunity is given to the landlord to inspect the damage—

- (a) in the case of damage to a growing crop, before the crop is begun to be reaped, raised, or consumed; and
- (b) in the case of damage to a crop reaped or raised, before it is begun to be removed from the land—

and unless notice in writing of the claim, together with the particulars thereof, is given to the landlord within one month after the expiration of the calendar year, or such other period of twelve months as by agreement between the landlord and tenant may be substituted therefor, in respect of which the claim is made.

(3) Where the landlord proves that, under a contract of tenancy made before the commencement of this Act, any compensation for damage by game is payable by him, or that in fixing the rent to be paid under such contract allowance in respect of such damage to an agreed amount was expressly made, the arbitrator shall make such deduction from the compensation which would otherwise be payable under this section as may appear just.

(4) Where the right to kill and take the game is vested in some person other than the landlord, the landlord shall be entitled to be indemnified by such other person against all claims for compensation under this section.

For the purposes of this section the expression "game" means deer, pheasants, partridges, grouse, and black game.

Provision of
cropping and
disposal of pro-
duce.

3.—(1) Notwithstanding any custom of the country or the provisions of any contract of tenancy or agreement respecting the method of cropping of arable lands, or the disposal of crops

the arable land on his holding and to dispose of the produce of his holding without incurring any penalty, forfeiture, or liability: Provided that he shall previously have made, or, as soon as may be, shall make, suitable and adequate provision to protect the holding from injury or deterioration, which provision shall in the case of disposal of the produce of the holding consist in the return to the holding of the full equivalent manurial value to the holding of all crops sold off or removed from the holding in contravention of the custom, contract, or agreement:

Provided that this subsection shall not apply—

- (a) in the case of a tenancy from year to year, as respects the year before the tenant quits the holding or any period after he has given or received notice to quit which results in his quitting the holding; or
- (b) in any other case, as respects the year before the expiration of the contract of tenancy.

(2) If the tenant exercises his rights under this section in such a manner as to injure or deteriorate the holding, or to be likely to injure or deteriorate the holding, the landlord shall without prejudice to any other remedy which may be open to him be entitled to recover damages in respect of such injury or deterioration at any time, and, should the case so require, to obtain an injunction, or in Scotland an interdict, restraining the exercise of the rights under this section in that manner, and the amount of such damages may, in default of agreement, be determined by arbitration.

(3) A tenant shall not be entitled to any compensation in respect of improvements comprised in Part III. of the First Schedule to the Agricultural Holdings Act, 1900, which have been made for the purpose of making such provision to protect the holding from injury or deterioration as is required by this section.

(4) In this section the expression "arable land" shall not include land in grass, which by the terms of any contract of tenancy is to be retained in the same condition throughout the tenancy.

4. Where the landlord, without good and sufficient cause, and for reasons inconsistent with good estate management, terminates a tenancy by notice to quit, or, after having been requested in writing, at least one year before the expiration of the tenancy, to grant a renewal thereof, refuses to do so, or where it has been proved that an increase of rent is demanded from the tenant, and that such increase was demanded by reason of an increase in the value of the holding due to improvements which have been executed by or at the cost of the tenant, and for which he has not, either directly or indirectly, received an equivalent from the landlord, and such demand results in the tenant quitting the holding, the tenant upon quitting the holding shall, in addition to the compensation (if any) to which he may be entitled in respect of improvements, and

Compensation
for increased
arable distric-
ance.

notwithstanding any agreement to the contrary, be entitled to compensation for the loss or expense directly attributable to his quitting the holding which the tenant may unavoidably incur upon or in connection with the sale or removal of his household goods, or his implements of husbandry, produce, or farm stock on or used in connection with the holding.

Provided that no compensation, under this section shall be payable—

- (a) unless the tenant has given to the landlord a reasonable opportunity of making a valuation of such goods, implements, produce, and stock as aforesaid; or
- (b) unless the tenant has within two months after he has received notice to quit or a refusal to grant a renewal of the tenancy, as the case may be, given to the landlord notice in writing of his intention to claim compensation under this section; or
- (c) where the tenant with whom a contract of tenancy was made has died within three months before the date of the notice to quit, or in the case of a lease for years before the refusal to grant a renewal; or
- (d) if the claim for compensation is not made within three months after the time at which the tenant quits the holding.

In the event of any difference arising as to any matter under this section the difference shall, in default of agreement, be settled by arbitration.

Prospective
Act of
18 & 59 Vict.
27, s. 4, &
1 & 61 Vict.
23.

5. Section four of the Market Gardeners' Compensation Act, 1895, and section four of the Market Gardeners' Compensation (Scotland) Act, 1897, shall apply to improvements executed before the dates of the commencement of those Acts respectively in like manner as the sections apply to improvements executed after those dates.

Consent of
landlord not
required for
certain im-
provements.

6. The following improvements shall be included in Part II. of the First Schedule to the Agricultural Holdings Act, 1900:—
Repairs to buildings, being buildings necessary for the proper cultivation or working of the holding, other than repairs which the tenant is himself under an obligation to execute:

Provided that the tenant, before beginning to execute any such repairs, shall give to the landlord notice in writing of his intention, together with particulars of such repairs, and shall not execute the repairs unless the landlord fails to execute them within a reasonable time after receiving such notice.

Record of hold-

7. If at the commencement of any tenancy entered into after the commencement of this Act either party so requires, a record of the condition of the buildings, fences, gates, roads, drains, ditches, and cultivation of the holding shall be made within three months after the commencement of the tenancy by

agriculture and Fisheries, and in default of agreement the cost making such record shall be borne by the landlord and tenant in equal proportions.

8. The enactments mentioned in the Schedule to this Act ^{Repeal.} are hereby repealed to the extent specified in the third column of that Schedule.

9. This Act shall come into operation on the first day of ^{Commence-} January one thousand nine hundred and nine. ^{ment of Act}

10. This Act may be cited as the Agricultural Holdings ^{Short title.} Act, 1906, and shall be read and construed and may be cited with the Agricultural Holdings (England) Acts, 1883 to 1900, and the Agricultural Holdings (Scotland) Acts, 1883 to 1900.

SCHEDULE.

ENACTMENTS REPEALED.

Section 8.

Session and Chapter.	Short Title.	Extent of Repeal.
41 Vict. c. 28.	The Game Laws Amendment (Scotland) Act, 1877.	The whole Act, except sections one, ten, and eleven, and the definition of sheriff in section three.
54 Vict. c. 50.	The Agricultural Holdings Act, 1900.	Subsection (1) of section one. In section two, the words "by arbitration in accordance with the provisions (if any) in that behalf in any agreement between landlord and tenant, and in default of and subject to any such provisions"; the words "or arbitrators"; the words "An arbitration shall, unless the parties otherwise agree, be before a single arbitrator"; the words "or umpire"; and the words "subject to any provision contained in any agreement between landlord and tenant." Second Schedule, Part II.